

Raju @ Yunus S/O Ahmed Punjani vs Mohd. Imran Isani S/O Noor Mohd. Isani on 21 July, 2016

Author: Prasanna B. Varale

Bench: Prasanna B. Varale

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IN THE HIGH COURT OF JUDICATURE AT BOMBAY
: NAGPUR BENCH : NAGPUR.

APPEAL AGAINST ORDER NO. 5 OF 2015

Raju @ Yunus S/o Ahmed Punjani,
Aged about 38 years, Occ : Business,

R/o Ward No. 4, Near Shelgaon Para,
Dongaon, Taq - Mehkar,
Dist - Buldhana.

// Versus //

Mohd. Imran Isani S/o Noor Mohd Isani,
Aged about 32 years, Occ : Business,
R/o. Bhandegaon, Tq. Darwa,

District Yavatmal.

Shri R. S. Akbani, Advocate for the appellant
Shri Abdul Subhan with Shri Firdos Mirza, Advocates for the respondent

DATE : 21-7-2016.

ORAL ORDER :

Heard Shri R. S. Akbani, learned counsel appearing for the appellant and Shri Abdul Subhan with Shri Mirza, learned counsel for the respondent.

2. By the present appeal, the appellant is challenging the order passed by the learned District Judge - 1, Darwha, District Yavatmal dated 30-6-2014 thereby allowing the application moved at the instance of the present respondent seeking custody of a minor child (daughter) under 2 jg.a05.15.odt Section 8 and 25 of the Guardians and Wards Act.

3. Brief facts giving rise to the present appeal can be summarized as follow :

The appellant is the maternal uncle of the minor child whose custody is sought for and the respondent is the father of the minor child. Marriage between the sister of the appellant and the respondent was solemnized sometime in June, 2009. Couple was blessed with the child on 14-10-2011.

The sister of the appellant and the mother of the child committed suicide on 31-8-2012. It is the case of the appellant that the child was in the neighbouring house when the appellant visited the house on the information received that his sister committed suicide and took a child along with him. Since then, the child is with the appellant and in the company of grandparents of the child. The Crime No. 72/2012 was registered against the respondent and other family members. The respondent submitted an application before the learned District Judge - 1, Darwha for seeking custody of the child, namely, Javeriya under Section 8 and 25 of the Muslim Law. It was submitted by the respondent in his application that as the wife of the respondent committed suicide on 31-8-2012 by setting herself on fire and though the respondent made an attempt to extinguish the fire, his attempts failed. In the said incident, the respondent also suffered burn injuries. He was admitted in the hospital.

3 jg.a05.15.odt The respondent was arrested in connection with Crime No. 72/2012 registered at Darwha Police Station and as soon the respondent was enlarged on bail, he made an enquiry about his minor daughter and found that she is illegally taken in custody by the appellant and her grandparents.

It was submitted in the application that the respondent, being father of the child, is the natural guardian and the respondent is in a joint family. It was further submitted that the respondent, being the natural guardian, is duty bound to take care of the child in all respect such as her education and her well being. It was submitted in the application that the child being of a tendered age, the

respondent is deeply concerned with her education and health. It was further submitted in the application that as the child was illegally taken in custody by the appellant and the grandparents, the respondent apprehends that an attempt would be made to impress upon the child that the respondent is responsible for the suicide of the mother of the child and the same would result in a ill-will against the respondent. Thus the respondent with the grounds raised in the application prayed for orders regarding the custody of the minor child. The application was opposed by the appellant. It was submitted that on receiving information, when the appellant rushed to the matrimonial house of his sister, he found that the care of the child was not being taken properly and the child was in need of proper care. It was further submitted that the respondent with an ulterior 4 jg.a05.15.odt motive submitted an application for search of the child under Section 97 of the Code of Criminal Procedure. It was further submitted that the appellant being the maternal uncle and the other members of the family of the appellant having love and affection towards the minor child were taking each and every care of the welfare and well being of the child. It was further submitted that due to the ill treatment of the respondent and due to the consistent demand for dowry, the sister of the appellant committed suicide. It was further submitted that on receiving information of death of his sister, when the appellant rushed to the house of his sister, he found that the minor child was in a neighbouring house and the minor child was not keeping good health. It was submitted that the respondent though a father of the child whereas the appellant and the other family members were taking care of the child and in future also, the appellant and the family members would take each and every care of well being of the child. On these rival contentions of the parties and by hearing the parties and also by appreciating the material in the form of the oral evidence tendered by the parties, the learned District Judge allowed the application.

4. Shri Akbani, learned counsel for the appellant vehemently submitted that the learned District Judge grossly erred in arriving at the conclusion. It was the submission of Shri Akbani, learned counsel that the learned District Judge only on the consideration that the respondent is a 5 jg.a05.15.odt father of the child, allowed the application and failed to appreciate that the respondent was subjected to initiation of the criminal proceedings. Learned counsel for the appellant submitted that for untimely and unnatural death of the sister of the appellant, criminal case for Crime No. 72/2012 was registered against the respondent for committing the offences punishable under Sections 498A and 306 read with Section 34 of the Indian Penal Code and the same is pending. It is further submitted that as per the instructions of the appellant, the charge-sheet is also filed. Shri Akbani, learned counsel further submitted that in spite of these facts, the learned District Judge observed that there are no serious charges against the respondent. Learned counsel for the appellant further submitted that there is no dispute on the principle that the paramount consideration would be the welfare of the child is duly taken care of by the appellant and his other family members. It was submitted by the learned counsel that on receiving the information of death of his sister, when the appellant rushed to the house of his sister, he found that there was nobody in the house and the child was in the neighbouring house. Learned counsel for the appellant further submitted that the family of the appellant is a joint family. He further submitted that the appellant is a vendor of sweets and the sister of the appellant was a teacher. He further submitted that the appellant is married and there is no issue out of the wedlock. Learned counsel for the appellant further 6 jg.a05.15.odt submitted that as the joint family of the appellant consists of his father, mother, paternal aunt and wife, the child would in atmosphere of love and affection in the family. It was thus the submission of

learned counsel for the appellant that the learned District Judge ought not to have allowed the application. Learned counsel for the appellant in support of his submissions placed reliance on the judgments of the Apex Court and this Court reported in AIR 2009 SC (Supp) 732 in the matter of Nil Ratan Kundu and anr.

Vs. Abhijit Kundu and 2013(1) Mh.L.J. 700 in the matter of Angelina Miranda Vs. Lisbon Johan Miranda respectively. Shri Akbani, learned counsel in support of his submission that the respondent is charged for the offence punishable under Sections 498A, 306 read with Section 34 of the Indian Penal Code and the appellant being maternal uncle of the child is seeking custody of the child and the facts are being identical referred to paragraph no. 72 of the judgment in the matter of Nil Ratan Kundu and anr. Vs. Abhijit Kundu.

5. Per contra, Shri Abdul Subhan, learned counsel for the respondent supported the order impugned in the present appeal. The first limb of submissions of Shri Subhan, learned counsel was the appellant having no locus could not have approached the Court below for seeking custody of the child. His another limb of submission was the respondent, being father, is the natural guardian of the child. He further submitted that 7 jg.a05.15.odt the appellant miserably failed before the Court below to establish his case that when the death of the sister of the appellant occurred, the child was in the neighbouring house and was taken in custody by the appellant.

Shri Subhan, learned counsel further submitted that the respondent himself suffered the burn injuries and was immediately admitted in the hospital and he was under treatment in the hospital. On 25-9-2012, the respondent was discharged from the hospital. On receiving the information, child was taken in custody illegally by the appellant and the family members of the appellant. Immediately, respondent availed the remedies by filing an application for search under Section 97 of the Code of Criminal Procedure and subsequently, an application for seeking custody of the child. It is submitted by the learned counsel for the respondent that though the appellant claimed that he is in a sound financial position to take care of the child, the material brought on record and appreciated and scrutinized by the Court below revealed that the appellant was not financially capable of taking care, well being and welfare of the child. On the contrary, it is the respondent who is financially well off having his independent own business.

Case of all the basic needs, such as, the education of the child, health care of the child and well being of the child, the respondent is certainly in better position for making all arrangements, such as, admitting the child in better school and providing better facilities including health care.

8 jg.a05.15.odt Shri Subhan, learned counsel submitted that the documents placed on record along with the appeal, namely, certificate issued by the Sarpanch, Gram Panchayat, Dongaon dated 1-1-2015 itself shows that the minor child is registered under the Anganwadi Seva Yojna and the child was a beneficiary under the scheme for education and the meals as well as the supplementary foods. The certificate shows that the appellant was referred to as guardian for the child. Thus, the submission of Shri Subhan, learned counsel was the appellant was certainly not in a position to take care of the child either for education or for other basic needs.

6. Shri Subhan, learned counsel further submitted that the respondent is facing charge of 306, 498A read with Section 34 of the Indian Penal Code as it is the case of the prosecution that the victim i.e. wife of the respondent Shaminabano committed suicide. Shri Subhan, learned counsel then by inviting my attention to the oral evidence of the appellant submitted that the appellant in his cross-examination admitted that he is indulged in selling sweets and chocolates and for this purpose, he requires touring at the nearby villages. It is further admitted by the appellant in his testimony that his parents are not residing with him but they are residing at another village, namely, Leni and they are running a grocery shop at Leni. It is further admitted in the cross-examination that sister of the appellant is working as a teacher and is a divorcee. Thus, the submission of Shri 9 jg.a05.15.odt Subhan, learned counsel was on comparative assessment of the material, the respondent certainly stand at a better footing and is capable of taking care of welfare and well being of the child. Shri Subhan, learned counsel submitted that the appellant is partial physically disabled person and as such, he may not be in a position to take complete and full care of the child, thus, even on the aspect of physical capacity, the respondent is on the better footing is the submission of Shri Subhan, learned counsel.

7. Shri Subhan in support of his submissions relied on the judgment of the Supreme Court in the case of Mausami Moitra Ganguli Vs. Jayant Ganguli reported in (2008) 7 SCC 673 and the judgment of this Court in Wahidunissa Begum w/o Abdul Wahid and anr. Vs. Shaikh Abdulla s/o Sk. Maheboob reported in 2000(1) Mh.L.J. 136. In the matter of Wahidunissa Begum w/o Abdul Wahid and anr. Vs. Shaikh Abdulla s/o Sk. Maheboob, custody of child was sought for by the grandparents and the respondent therein i.e. father of the child was not only charged for the offences punishable under Sections 498A, 306 and 304-B read with Section 34 of the Indian Penal Code but also was charged for the offence punishable under Section 302 of the Indian Penal Code. He further submitted that on the paramount consideration of the welfare of the child, the appeal be dismissed and the order of custody to the father of the child be maintained.

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8. As the facts of the case and rival contentions as referred to in detail above, the only issue emerges is about sustainability of the order under challenge on the backdrop of custody of the child. As stated above, the marriage between the sister of the appellant and the respondent was solemnized in June, 2009 and the couple was blessed with a child on 14-10-2011. The child is of tendered age and hardly is of 5 years. The ground raised by the appellant in opposition to the application submitted by the respondent seeking custody of the child and also before this Court is the respondent is charged for the offences and the learned District Judge failed to appreciate the material presented before him. Shri Akbani, learned counsel submitted before this Court that the appellant, on receiving information about death of his sister, immediately rushed to the matrimonial house of his sister and found that there was nobody in the house and the child was in a neighbouring house, as such, the appellant picked up the child and since then, the child was in custody of the appellant and the grandparents. On the backdrop of this submission, it would be interesting to note the oral evidence tendered by the appellant before the learned District Judge. The appellant failed to even refer to the name of the neighbouring lady from whom he picked up the child. The appellant in his cross-examination admitted that he was unable to state in which hospital, the child was born. The

appellant admitted in the cross-

11 jg.a05.15.odt examination that he is indulged in business of selling sweets and chocolates and for that purpose, he requires touring at various places. He admits that his parents are residing at different village, namely, Leni and they run a grocery shop there. The respondent submitted in his application and reiterated before this Court that he is running independent business of production of cold drinks. No contra material is brought on record by the appellant to counter this fact. Thus, on the aspect of the finding capability, there was merit in the submission of Shri Subhan, learned counsel for the respondent. This aspect will have to be considered for the reason that it lead to assessment of the paramount consideration i.e. the welfare of the child. The material which is placed on record referred to by learned counsel Shri Subhan also needs consideration, namely, the certificate issued by the Sarpanch. As stated above, the certificate clearly shows that the minor child is registered being the beneficiary under the Anganwadi Seva Yojna and the child was a beneficiary under the scheme for education and the meals as well as the supplementary foods. Thus, if the material placed on record in the form of certificate issued by the Sarpanch coupled with oral testimony of appellant is perused, it clearly show that the appellant himself is not sound financially. In that case, the appellant would certainly not in a position to provide basic facilities to the minor child. On the other hand the respondent firstly being the father i.e. natural guardian and secondly having 12 jg.a05.15.odt a sound financial position would be in a position to provide all basic amenities for the welfare and well being of the minor child. Though learned counsel Shri Akbani made an attempt to submit that the order passed by the learned District Judge is erroneous on the ground that the learned District Judge observed that there are no serious charges against the respondent whereas the respondent is charged for the offences punishable under Section 498A and 306 read with 34 of the Indian Penal Code. On perusal of the judgment and order, the learned District Judge did not observe that there are no serious charges against the respondent. The observations of the learned District Judge that "admittedly the Javeriya was taken away after the death of her mother by the non-applicant maternal uncle Raju from the custody of applicant. That time she was maintained well. There are no such serious allegations that applicant did hate Javeriya." Other observation is "there is no serious allegation of vices against him (against the respondent herein and the applicant before the learned District Judge)."

Therefore, learned District Judge was assessing the claim on the backdrop of the capability and capacity of the claimant so as to consider the aspect of welfare and well being of the child. As the matter revolves around the custody of the child, it will not be out of place to refer to one of the latest judgment of the Apex Court in the case of Roxann Sharma Vs. Arun Sharma reported in (2015) 8 SCC 318. It will be useful for our purposes 13 jg.a05.15.odt to refer to the aspect of guardianship considered by the Apex Court. The Apex Court by referring to the law dictionaries and relevant provisions under various Acts, observed that :

"8. Guardianship postulates control over both the person as well as the assets of a minor or of one and not the other. This is obvious from a reading of the definitions contained in Section 4 (2) of the Guardians & Wards Act, 1890 (G and W Act) and Section 4(b) of the HMG Act which clarifies that "Guardian" means a person having the care of the person of a minor or of his property or of both his person and

property. Section 9 contemplates the filing of an application in respect of the guardianship of the person of the minor and Section 10 specifies the form of that application. Section 12 deals with the power to make interlocutory order for production of the minor and interim protection of his person and property. Section 14 is of importance as its tenor indicates that these controversies be decided by one court, on the lines of Section 10 CPC which imparts preference of jurisdiction to the first court. Section 17 gives primacy to the welfare of the minor. Sub-section (2) thereof enjoins the court to give due consideration to the age, sex and religion of the minor, the character and capacity of the proposed guardian and his nearness of kin to the minor. Since Thalbir is of a very tender age, the advisability of determining his wishes is not relevant at the present stage; he is not old enough to form an intelligent reference. Section 25 covers the custody of a ward being removed from the custody of the guardian of his

14 jg.a05.15.odt person, and adumbrates that if the Court is of the opinion that it will be for the welfare of the ward to return to the custody of his guardian it shall make an order of his return."

In the present matter, initially, though this Court thought of interviewing the child, but guided by the judgment referred to above in the case of Roxann Sharma Vs. Arun Sharma (cited supra), considering the tendered age of minor child i.e. hardly of 5 years of age, this Court thought it fit not to interview the child.

9. Shri Akbani, learned counsel placed reliance on certain judgments. In my opinion, considering the factual aspects referred to above in the present case, the judgments relied on by Shri Akbani, learned counsel are of no help to him.

10. Shri Subhan, learned counsel for the respondent was justified in placing reliance on the judgment of the Apex Court in the case of Mausami Moitra Ganguli Vs. Jayant Ganguli (cited supra). The Apex Court observed that :

19. The principles of law in relation to the custody of a minor child are well settled. It is trite that while determining the question as to which parent the care and control of a child should be committed, the first and the paramount consideration is the welfare and interest of the child and not the rights of the parents under a statute. Indubitably, the provisions of law 15 jg.a05.15.odt pertaining to the custody of a child contained in either the Guardians and Wards Act, 1890 (Section 17) or the Hindu Minority and Guardianship Act, 1956 (Section 13) also hold out the welfare of the child as a predominant consideration. In fact, no statute, on the subject, can ignore, eschew or obliterate the vital factor of the welfare of the minor.

20. The question of welfare of the minor child has again to be considered in the background of the relevant facts and circumstances. Each case has to be decided on its own facts and other decided cases can hardly serve as binding precedents insofar as the factual aspects of the case are concerned. It is, no doubt, true that father is

presumed by the statutes to be better suited to look after the welfare of the child, being normally the working member and head of the family, yet in each case the court has to see primarily to the welfare of the child in determining the question of his or her custody. Better financial resources of either of the parents or their love for the child may be one of the relevant considerations but cannot be the sole determining factor for the custody of the child. It is here that a heavy duty is cast on the court to exercise its judicial discretion judiciously in the background of all the relevant facts and circumstances, bearing in mind the welfare of the child as the paramount consideration.

Thus, considering the circumstances, the Apex Court arrived at a conclusion and observed under the circumstances and bearing in mind the paramount consideration of the welfare of the child, we are convinced that the child's 16 jg.a05.15.odt interest and welfare will be best served if he continues to be in the custody of the father.

11. Shri Subhan, learned counsel also placed reliance on the judgment of this Court in Wahidunissa Begum w/o Abdul Wahid and anr.

Vs. Shaikh Abdulla s/o Sk. Maheboob (cited supra). In that matter, the respondent- father was charged for the offences punishable under Sections 498A, 306, 304-B and 302 read with Section 34 of the Indian Penal Code.

A similar objection was raised in the matter of Wahidunissa Begum w/o Abdul Wahid and anr. Vs. Shaikh Abdulla s/o Sk. Maheboob, namely, the respondent was charged with a serious offences. Considering all the relevant factors including the anxiety of the father to see that the child is brought up properly and is properly educated and considering the fact that child was of a tendered age, it would be appropriate age of the child to channelise and develop love and affection and considering the background of the father namely, the father was a Lecturer drawing handsome salary whereas the grandparents being old aged, this Court dismissed the appeal preferred by the grandparents upholding the orders passed by the trial Court whereby the custody was directed to be handed over to the father.

12. As referred to above, the respondent as soon the incident of his wife committed suicide was admitted in the hospital, thereafter was 17 jg.a05.15.odt arrested and after enlarging on bail, submitted an application seeking custody of the child. There is no material to suggest that prior to that unfortunate incident, the applicant was ill-treating the child or was addicted to some vices. Thus, considering all the material placed on record, in my opinion, neither any error is committed by the learned District Judge nor any illegality or perversity is found in the judgment and order impugned in the present appeal. The appeal, being meritless, deserves to be dismissed.

The appeal is, accordingly, dismissed.

13. Shri Akbani, learned counsel prays for stay to the order of this Court so as to avail the remedy of challenging the order of this Court before the Apex Court. Shri Subhan, learned counsel opposes the

prayer for stay.

14. Perusal of the record shows that on 9-1-2015, the interim order was passed and the same was vacated for non appearance of the counsel.

The record further shows that interim relief was vacated for non appearance of the learned counsel and on 30-6-2016, the appeal was fixed for final disposal. The learned counsel for the respondent gave an undertaking to this Court that till next date of hearing, the respondent shall not take coercive steps. In view of these facts, the prayer for stay is rejected.

15. Shri Akbani, learned counsel in the alternative submitted that the appellant and the grandparents of child have developed intimacy, love and affection towards the child and it would be difficult for them to part with the custody of the child and the appellant and grandparents be permitted to have visitation right. Shri Subhan, learned counsel fairly submits that he has no objection if the appellant and grandparents attend for visiting the child. Shri Subhan, learned counsel further submitted that for visiting the child, it would be more convenient if a pre-intimation is forwarded. Considering these aspects, it would be better if the Court fix the visitation days so as to avoid inconvenience. It is submitted that so as to avoid inconvenience of the parties and in view of the criminal proceedings going on between the parties, it would be better if the visitation days are fixed by this Court. The appellant and grandparents of the child are permitted to visit the child on every second and fourth Sunday of the month.

JUDGE wasnik CERTIFICATE "I certify that this Judgment uploaded is a true and correct copy of original signed Judgment."

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